

Tentative Rulings for June 25, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2205203	BUTLER VS WINCHELL	MOTION TO VACATE DEFAULT JUDGMENT AND TO RESTORE CASE TO TRIAL CALENDAR

Tentative Ruling:
GRANT

The Judgment After Trial by Court entered on February 20, 2026, is hereby set aside. Matter is set for a Trial Setting Conference on August 20, 2026, at 8:30am, D-4.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304403	KANDILIAN VS BMW NORTH AMERICA, LLC	MOTION TO EXCLUDE PLAINTIFF'S EXPERT GABE PAREDES AND DISQUALIFY PLAINTIFF'S LAW FIRM BY BMW NORTH AMERICA, LLC

Tentative Ruling:
DENY the Motion to Exclude Gabe Paredes and Disqualify Plaintiff's Firm

Plaintiff's objection No.1 to the declaration of Travis Brown is SUSTAINED on the grounds of speculation, lack of foundation and hearsay.

Plaintiffs' objections Nos. 1-8 to the Declaration of Luis Holguin are SUSATINED on the grounds of speculation, lack of foundation and hearsay.

Defendant does not meet its initial burden to show that Plaintiff's expert witness, Gabe Paredes, possesses confidential information protected by the attorney-client privilege or the attorney work product rule, that is materially related to this action. Defendant has not established that Paredes possesses any confidential information and/or privileged information in this case that would implicate the rebuttable presumption that such information was disclosed to Plaintiff's counsel. The motion to disqualify Plaintiff's counsel is also denied.

The three supplemental declarations filed by Defendant after the court issued its Order to set aside the ruling of June 3, 2026, and set the matter for further hearing today, do not provide any new or additional information that would change the court's ruling to deny the motion.

The Declaration of Gayatri Raghunandan provides no new information that addresses the dispositive test for disqualification set forth in *Shadow Traffic Network v. Superior Court* (1994) 24 Cal.App.4th 1067---whether Paredes possessed confidential attorney-client information materially related to this proceeding. The fact that Plaintiff's attorney represented Paredes does not suggest any conflict that is material to the instant action.

The Declaration of Samantha Sheehan is equally non-material to the issue of disqualification, as it merely restates that Plaintiff's counsel previously represented Paredes and that Paredes intended to sue Defendant. The Declaration of Luis Holguin shows that Paredes had access to potentially confidential information, but it does not provide any additional information showing that Paredes was in fact exposed to confidential information relevant and material to this action. Paredes' pre-departure conduct does not lead to an inference that he obtained relevant confidential information material to this case.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2401575	FIERRO BROWN VS GENESIS MOTOR AMERICA, LLC	MOTION TO COMPEL PRODUCTION OF PLAINTIFF'S VEHICLE FOR INSPECTION

Tentative Ruling:

Continue the Motion to August 11, 2026, at 8:30am, D-4.

The parties have agreed to a vehicle inspection on July 23, 2026. If the inspection does not go forward on July 23, 2026, the parties are Ordered to meet and confer further prior to the continued hearing date, and to file a joint statement outlining the remaining issues at least 10 days prior to the continued hearing date.

If no joint statement is filed, the court will assume that the inspection went forward, and the Motion will be denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2500061	THE PEOPLE OF THE STATE OF CALIFORNIA VS VALUE HOTELS, CORP.	MOTION TO APPOINT RECEIVER

Tentative Ruling:

GRANT

5.

CASE #	CASE NAME	HEARING NAME
CVRI2502894	RICK'S PATIO, INC. VS MARINE AIR LAND INTERNATIONAL SERVICES LLC	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling:

SUSTAIN the demurrer to the first cause of action for negligence with 30 days leave to amend. Plaintiff has alleged sufficient facts to state that Defendant owes Plaintiff a legal duty of care, but Plaintiff has insufficiently pled damages. Plaintiff only claims economic damages for its negligence cause of action. (SAC, Para. 24; Prayer, Nos. 1-3.) Plaintiff's Opposition to the Demurrer does not address Defendant's argument that Plaintiff is only seeking economic damages; hence, Plaintiff has failed to state sufficient facts to give rise to a cause of action for negligence arising from Defendant's alleged breach of contract.

OVERRULE the demurrer to the second and third causes of action.

Breach of Fiduciary Duty

By alleging that Defendant was Plaintiff's customs broker (Second Amended Complaint (SAC), Para.9.), Plaintiff has alleged sufficient facts to support that a fiduciary relationship existed between the parties and that Defendant owed a fiduciary duty to Plaintiff. Whether the fiduciary duty was breached is a question of fact that cannot be decided upon a demurrer.

Breach of Contract

Plaintiff sufficiently alleges that Defendant agreed to ensure that correct tariff applications would be filed, and that Defendant breached its agreement by filing "incorrect paperwork" that led to the imposition of unnecessary tariffs. (SAC, Paras. 10-12.) Plaintiff has alleged sufficient facts to state a cause of action for breach of contract against Defendant.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2502894	RICK'S PATIO, INC. VS MARINE AIR LAND INTERNATIONAL SERVICES LLC	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling:

GRANT the motion to strike Plaintiff's request for attorney fees in the SAC, Prayer No. 2. There is no fee authorized by contract, statute, or law that would entitle Plaintiff to attorney fees. Plaintiff is entitled, however, to seek costs.

GRANT, in part, the motion to strike Plaintiff's claim for prejudgment interest to the extent that it relies on non-contractual damages that cannot be resolved except by verdict or judgment. DENY, in part, the motion to strike Plaintiff's claim for prejudgment interest as it relates to liquidated damages (Civ. Code § 3287(a)) and unliquidated contract claims (Civ. Code § 3287(b)).

DENY the motion to strike the term "unnecessary tariffs", the amount of damages claimed (\$209,891.58) and allegations of "gross recklessness and wanton disregard" from the SAC.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2507426	GARCIA VS FCA US LLC	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

This matter has been continued from May 4, 2026, for Plaintiff to file a sur-reply that addressed the Economic Loss Rule under the fraud claim in the First Amended Complaint (FAC). Plaintiff has not filed a sur-reply as of 6/24/26.

SUSTAIN the demurrer to the 5th cause of action for negligent repair with 30 days leave to amend. The FAC avers that the Dealership "breached its duty" by "failing to properly store, prepare and repair the vehicle in accordance with industry standards." (FAC, Para.112.) The FAC also alleges that the breach was the proximate cause of Plaintiffs' damages (FAC, Para.113.), but Plaintiffs fail to plead the nature and extent of their damages. The claim fails to sufficiently plead damages.

OVERRULE the demurrer to the sixth cause of action for Fraudulent Inducement/Concealment.

Under *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 and *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, the Plaintiff's fraud claim is not barred by the Economic Loss Rule. Plaintiff has sufficiently alleged that the parties entered into a contractual arrangement, showing the existence of a transactional relationship between the parties, and imposing a duty of disclosure upon FCA.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2507426	GARCIA VS FCA US LLC	MOTION TO STRIKE

Tentative Ruling:

DENY

Plaintiff has sufficiently pled a claim for fraudulent concealment, and hence he is entitled to request punitive damages.